

TAB 20



Board of Education Report

File #: Rep-302-23/24, Version: 1

Request for Authorization to Negotiate and Execute Contracts

June 4, 2024

Division of Special Education

Action Proposed:

Delegate authority to the Superintendent or his designee in the Division of Special Education to negotiate, execute, authorize payments under, amend, exercise options, and terminate (whether by default or convenience) and take any other actions necessary, subject to and in accordance with California Education Code, California Government Code and any other applicable statutory provisions, for the administration of master contracts listed in Attachment “A”: Nonpublic School/Agency (“NPS/A”) Master Contracts (exceeding \$250,000) for the 2024-25 school year.

Background:

The Division of Special Education negotiates its master contracts with NPS/As on an annual basis and will prepare periodic reports for contract actions necessary for the provision of special education and related services in accordance with Board delegated authority to the Superintendent.

The Individuals with Disabilities Education Act (“IDEA”) requires that the District provide qualified students with disabilities with special education and related services. The District meets these obligations through its Special Education Local Plan Area (“SELPA”) Local Plan. The District is required to maintain a continuum of program options, including nonpublic, nonsectarian schools and nonpublic agencies, to meet the needs of its special education students. (Ed. Code, §§ 56360, 56361, 56365.)

The District is required to make available NPS and NPA services and must provide these services by entering into a master contract for nonpublic, nonsectarian school or agency services. The master contract must specify the financial agreement between the District and NPS/A for the services in a student’s IEP that the NPS/A will provide. (Ed. Code, § 56366(a).) The District negotiates its master contracts with NPS/As on an annual basis. (5 C.C.R. § 3062(a).)

Expected Outcomes:

Approval of this item will allow the Division of Special Education to continue the provision of special education supports and services provided by these contracts to the Los Angeles Unified School District to serve eligible students with disabilities in support of Board policies and goals.

Board Options and Consequences:

A “Yes” vote authorizes the Division of Special Education to negotiate and execute master contracts to provide NPS/A services to qualified students with disabilities.

A “No” vote will result in immediate unavailability of these services or discontinuance of services, or both. The unavailability or discontinuance of these services would likely result in costly litigation and increased future costs in securing these services. Postponement of actions presented for approval in Attachment “A” will delay contract award or delivery dates, resulting in costly litigation.

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Policy Implications:

This action does not change District policy.

Budget Impact:

The contract actions presented do not change the budget authority.

Student Impact:

These contracts support the provision of special education and related services required by federal and state special education laws.

Equity Impact:

Component	Score	Score Rationale
Recognition	3	The award of the nonpublic school and agency (NPS/A) master contracts will support the District's efforts to provide mandated special education and related services and programs for students with disabilities pursuant to their Individualized Education Plan (IEP). The District is required to maintain a continuum of program options, to include nonpublic school and agency services, to meet the needs of individuals with exceptional needs for special education and related services as required by the IDEA.
Resource Prioritization	2	The NPS/A contracts will make services available to qualified students with disabilities, to be provided through master contracts with California Department of Education certified nonpublic schools and agencies.
Results	3	The 2024-2025 NPS/A contracts will ensure that the Division of Special Education has the required continuum of program options available to meet the needs of individuals with exceptional needs for special education and related services as required by the IDEA.
TOTAL	8	

Issues and Analysis:

There are no policy implications on these agreements. The Administrative and Education Legal Services Team, Office of the General Counsel, has reviewed and approved the master contract as to form.

Attachments:

Attachment A - List of NPS/A Master Contracts for the 2024-2025 fiscal year.

Informatives:

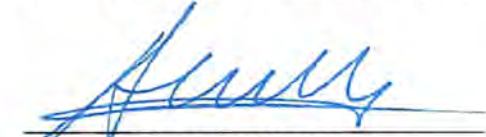
N/A

Submitted:

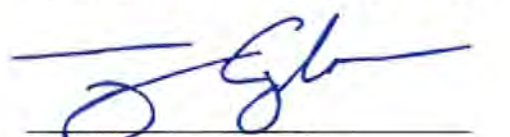
05/07/24

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RESPECTFULLY SUBMITTED,


ALBERTO M. CARVALHO
Superintendent

APPROVED & PRESENTED BY:


ANTHONY AGUILAR
Chief of Special Education, Equity and
Specialized Programs
Division of Special Education

REVIEWED BY:


DEVORA NAVERA REED
General Counsel

☒ Approved as to form.

APPROVED & PRESENTED BY:


JOSE SOTO
Interim Executive Director
Division of Special Education

REVIEWED BY:


NOLBERTO DELGADILLO
Deputy Chief Business Officer, Finance

☒ Approved as to budget impact statement.

ATTACHMENT A

<u>CONTRACTOR</u>	<u>IDENTIFICATION NO.</u>	<u>SOURCE OF FUNDS</u>	<u>AMOUNT</u>
360 DEGREE CUSTOMER INC. - LAS PER DIEM (NPA)	1000023319	State Funds (93.88%)	\$ 244,000,000
ADVANCING HIGHER EDUCATION & DEV (AHEAD) (NPA)	1000023375	Federal Funds (6.12%)	
AEQUOR HEALTHCARE (NPA)	1000025643		
ALPINE ACADEMY (NPS)	1000023376		
AUTISM BEHAVIOR CONSULTANTS (NPA)	1000023377		
AUTISM BEHAVIOR INTERVENTION (NPA)	1000023378		
AUTISM LEARNING PARTNERS (NPA)	1000023379		
AUTISM SPECT INTERV (NPA)	1000023380		
AUTISM SPECT THRPS (NPA)	1000023381		
BEHAVIOR & EDUC, INC (NPA)	1000023382		
BEHAVIOR FRONTIERS (NPA)	1000023383		
BEHAVIOR GUIDANCE GROUP (NPA)	1000023384		
BEHAVIORAL LEARNING NETWORK (NPA)	1000023385		
BMR HEALTH SVCS, INC (NPA)	1000023728		
BRIDGEPORT SCHOOL (NPS)	1000023656		
BRIDGEPORT WEST (NPS)	1000023549		
CALIFORNIA PSYCHCARE, INC (NPA)	1000023386		
CAROUSEL SCHOOL (NPS)	1000023387		
CENTER FOR AUT&REL SVC, INC (NPA)	1000023388		
CENTER FOR DEV MIND (NPA)	1000023389		
CHANGE ACADEMY-CALO (NPS)	1000023390		
CHILD COUNSELING & BEHAVIOR THERAPY CLINIC (NPA)	1000023391		
CHILD DEVELOPMENT INSTITUTE (NPA)	1000023392		
CHIME INSTITUTE (PRESCHOOL DIS) (NPA)	1000023393		
CINNAMON HILLS SCH (NPS)	1000023394		
CREATIVE BEHV CONSLT (NPA)	1000023395		
CTR BEH, ED & SOC THER. (NPA)	1000023396		

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<u>CONTRACTOR</u>	<u>IDENTIFICATION NO.</u>	<u>SOURCE OF FUNDS</u>	<u>AMOUNT</u>
DEVELOPMENTAL DYNAMO INC (NPA)			
DEVEREUX ACKERMAN (NPS)	1000023398		
DEVEREUX SCHOOL OF VIERA (NPS)	1000023399		
DUBNOFF SCHOOL (NPS)	1000023402		
EARLY STRIDES (NPA)	1000023404		
EDTHEORY, LLC (NPA)	1000023405		
EKO MULTI PURPOSE CENTER, INC. (NPS)	1000025702		
ELLIOTT INSTITUTE, INC. (NPS)	1000023407		
ESSEY, CAROL (NPA)	1000023408		
FIRSTSTEPS FOR KIDS, INC (NPA)	1000023409		
FOCUS ON ALL CHILD THERAPIES (NPA)	1000023410		
GARY STROMBERG & ASSOCIATES -PER DIEM (NPA)	1000023411		
GOLDEN STATE SPEECH (NPA)	1000023412		
HAWTHORNE ACADEMY (NPS)	1000025690		
HELP GROUP-NORTH HILLS PREP (NPS)	1000023413		
HERITAGE SCHOOL (NPS)	1000023591		
INCLUSIVE ED. & COMM PARTNERSHIP (NPA)	1000023415		
INIZIO INTERVNTN INC (NPA)	1000023416		
INSTITUTE FOR APPL. BEH. ANALYSIS (NPA)	1000023417		
INTENSIVE BEH INTRVEN CONSULTANTS (NPA)	1000023419		
INTERCARE THERAPY (NPA)	1000023420		
IRL ALMANSOR (NPS)	1000023421		
IRL WESTMORELAND (NPS)	1000023418		
JACK WEAVER SCHOOL (OAK GROVE) (NPS)	1000023418		
KAYNE ERAS CENTER (NPA)	1000023422		
KAYNE ERAS CENTER (NPS)	1000023424		
LEARNING & BEHV CTR (NPA)	1000023425		
LEHRHOFF, IRWIN (NPA)	1000023427		
LIGHT STREET SPECIAL EDUCATION SOLUTIONS (NPA)	1000023428		
LITTLE CITIZENS/WESTSIDE ACAD#1 MS (NPS)	1000023429		
	1000023430		

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LITTLE CITIZENS/WESTSIDE			
ACAD#3 ES (NPS)	1000023430		
LOGAN RIVER ACADEMY (NPS)	1000023431		
LOOKING GLASS CHILDRENS SERVICES (NPA)	1000023432		
LOVAAS INST./EARLY INTERVENTION (NPA)	1000023433		
MCRORY PEDIATRIC SERVICES (NPA)	1000023434		
NEW MEDISCAN II, LLC (NPA)	1000023435		
NORTHPOINT SCHOOL CFGC (NPS)	1000023436		
NOVA HEALTH THERAPIES (NPA)	1000011438		
PERSONAL COACHING SYSTEMS (NPS)	1000023437		
PIONEER HLTH SVC LLC (NPA)	1000023438		
PRISTINE REHAB CARE (NPA)	1000023439		
PROGRESSUS THERAPY, LLC (NPA)	1000023440		
PROTOCOL AGENCY, INC. (NPA)	TBA		
PROVO CANYON, UHS (NPS)	1000023441		
RCM HEALTH CARE SVCS (NPA)	1000023442		
REACHING THE STARS CTR. FOR AUT. (NPA)	1000023443		
SHABANI INSTITUTE (NPA)	1000023444		
SIERRA SCHOOL OF ALHAMBRA (NPS)	1000023445		
SLAUSON LEARNING CTR #1 (HIGH) (NPS)	1000023446		
SLAUSON LEARNING CTR II (ELEM) (NPS)	1000023446		
SMART START (NPS)	1000023447		
SOLIAN HEALTH INC (NPA)	1000023448		
SPEECH TIME (NPA)	1000023391		
SPEECH/LANG/EDUC. ASSOC. (NPA)	1000023451		
STAFF ASSISTANCE (NPA)	1000023452		
STEPPING STONES GR (NPA)	1000023453		
SUMMIT VIEW SCHOOL (NPS)	1000023594		
SUMMIT VIEW SCHOOL (WESTSIDE) (NPS)	1000023593		

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SUNRISE SCHOOL (NPS)	1000023596		
SUNRISE WEST (NPS)	1000023595		
SWITZER LEARNING CENTER (NPS)	1000023454		
THERAPY IN ACTION (NPA)	1000023455		
THERAPY MANTRA, INC. (NPA)	1000023456		
THERAPY WEST (NPA)	1000023457		
TOTAL EDUCATION SOLUTIONS (NPA)	1000023458		
VERDUGO HILLS AUTISM PROJECT (NPA)	1000023459		
VILLAGE GLEN SCH (VALLEY) (NPS)	1000023597		
VISTA SCHOOL (NPS)	1000023460		
WAYFINDER FAMILY SERVICES(NPS)	1000023461		
WORKING WITH AUTISM (NPA)	1000023462		
YOUNG LEARNERS PRE-S & INTRVN CTR (NPS)	1000023538		

The Division of Special Education is seeking authorization to negotiate and execute Nonpublic School/Agency Master Contracts for the 2024-25 school year for the provision of statutorily required student Individualized Education Program (IEP) supports and services. The authority to increase or decrease individual amounts for these contracts will be limited to the aggregate amount of \$244,000,000.

The District is required to maintain a continuum of program options, including nonpublic, nonsectarian schools and nonpublic agencies, to meet the needs of qualified students with disabilities. (See Education Code, §§ 56360, 56361, 56365.) To provide these services, the District must enter into a master contract in accordance with the Education Code. (Education Code, § 56366.)

The Division of Special Education is requesting authority to negotiate and execute new contracts with vendors not listed above within the aggregate amount of \$244,000,000. The Division of Special Education will bring the aforesaid contracts to the Board for ratification at a later date. The Division of Special Education is further requesting authority to negotiate rates, as provided by California Education Code section 56366, subsection (c)(2), and will return to the Board for ratification of the contracts after rates have been either negotiated or ordered by Los Angeles County Office of Education (LACOE) as delegated by the California Department of Education.

Contract Term: 07/01/24 through 6/30/25 to be renewed annually.

Aggregate Contract Value For Ninety-six (96) Contracts: \$244,000,000